

Elements for the ethical evaluation of the human act

- Human activity is complex and because of this, it can be difficult to judge the morality of our free acts. We will now study the criterion that may be followed in order to determine the goodness or badness of our acts; we will study the elements of the free act that have a moral value and see how these factors relate to one another.
- We have seen that every human act begins from within the person, in their intellect and will, and is then made manifest in their external behaviour.
 - ⇒ When we speak of the morality of an act we are indicating the orientation of an act (and so, the person who does it) towards the final goal or not;
 - ⇒ this will depend both on the object of the act itself and the intention of the person who does the act (end or goal he wishes to achieve); the circumstances of the act will also affect its morality.
 - ⇒ We need to study these three elements (object, intention and circumstances), which are the sources of the morality of the act, in order to ascertain how they determine the morality of the free human acts.

The object

- Each voluntary act has a particular object or content that is known and willed by the person who acts; a person that is cutting bread knows what he is doing and wants to do it.
- However, the object, or content, of each free act also has a basic moral value; that is, the content or object of the act should be considered in terms of the natural moral law: is this act (content, object) good for man according to his nature, or not?
 - ⇒ The moral object of the act is the ethical value of the acts considered in terms of natural moral law.
- In synthesis, each human act has an object (content, something that is done); we can distinguish two aspects of this object:
 - a) the physical dimension: what is actually to be done;
 - b) the moral dimension: the goodness or badness of the act itself considered in terms of the natural law, that is, in terms of the final goal of man. This is also known as the moral object of the act.
- When we grasp this difference, we can understand that the same physical act may have different moral objects depending on what is being done and the

way in which it is carried out; some ways may be coherent with man's final goal, other ways may not be so.

⇒ For example, I can speak in order to tell a lie, or to spread a calumny about someone, or to praise someone.

⇒ A person may kill another person in self-defense, because of carrying out a death penalty or with the desire to assassinate.

⇒ I may take something that belongs to another person in an act of theft, or in the act of borrowing it for a while and then returning it².

- So we can see that the object of the act is that towards which the act tends as carried out by a human being. From the point of view of its morality, it will be good or bad depending on how the act contributes to the true good of the person.

- The object chosen by a person in acting, as it has a moral value in itself, actually makes the act of the will good or bad; the intellect knows the possible act or object and judges whether or not it conforms to the true good, or final end of man. This goodness or badness is accepted by the will when it freely chooses for or against that act with its object.

⇒ Is the act of injecting oneself with morphine good or bad? If the intellect presents this medicine to the will as good for the person's health and this is really so in fact, the object of the act will be good from the ethical point of view.

⇒ However, if the intellect presents this act to the will as a drug that will give a disordered form of pleasure, and this is accepted by the will as desirable, then the object of the act will be bad.

⇒ So we see that the object of an act will be good if the act conforms to the principles and moral norms of the natural law.

- The moral object of the human act is something intrinsic to the act in itself and it determines the morality of the act itself, that is, whether it is directed towards the final goal or not. So the object of the act is that towards which the act in itself is directed; it is the good thing that the will has perceived and deliberately tends towards.
- There are some acts that are intrinsically evil; they are those acts whose object is opposed to the true good of the person; the moral object goes against the natural moral law and hence, goes against the dignity of the human person.

² CUERVO, Fernando, *Principios morales de uso mas frecuente*, Rialp, Madrid, 1994, p. 93.

- These acts are prohibited by negative moral precepts that are an obligation for everyone, independently of their intentions and circumstances. So, for example, slavery, the denial of the right to private property, unhealthy working conditions, the death of an innocent person, lying and calumny are all actions that go against the dignity of the human person.
- Hence, to define the morality of an action we must start, in the first place, with the truth about the human being.
 - ⇒ There are acts which in and of themselves are always evil, that is, they are incompatible with the true good for man and can never bring him to his final goal.
 - ⇒ As a result, man cannot choose these actions because, if he were to do so, he would be compromising his free will and would not be able to express his own goodness.
 - ⇒ Any act that is contrary to moral value is morally illicit and, and so, cannot contribute to man's fulfillment.
- The development of the person implies and presupposes the truth about man.
 - ⇒ If an act does not bring man closer to his perfection, then it is a bad act.
 - ⇒ Man's free activity will bring him to fulfillment if it respects the moral truth about man, and so, will be good;
 - ⇒ if his action destroys and does not respect the truth about man, it will be intrinsically evil⁵.
 - ⇒ The moral norms that prohibit these acts are permanent and to be maintained under every circumstance, without exception. This is to help in defending the truth about the human person and, hence, his true freedom.

The End (aim or intention)

- The end of the moral act is the objective towards which the person directs his acts, that is, what he aims at achieving. This end, along with the object, determines the substance of the moral act.

⁵ Cf. CUERVO, Fernando, op. cit., p. 67.

- ⇒ The end is the main intention of the agent, without which the act would not be carried out.
- ⇒ The will always tends towards a main goal which is that which makes it move, what the person wants; that is, to make that good thing his own..
- ⇒ The person impresses on all his actions an intention which he hopes to achieve through them, to the extent that, if the aim were to disappear, the subject would not act.
- The will always tends towards a main goal which is what moves it, but this does not mean that there cannot be other motives and concomitant intentions around the act.
 - ⇒ The goal should not be confused with these.
 - ⇒ The decisive element for determining that which pertains to the goal and that which constitutes the secondary objectives is the fact that these objectives in themselves would not bring the person to carry out an act, nor does the impossibility of obtaining them make the person desist from the act.
- Every human action has an intention. Although it is possible to think of acts whose object, in themselves are neither good nor bad, in practice there are no morally indifferent acts.
 - ⇒ As soon as an action becomes real, that is, is carried out by some person, it automatically stops being indifferent. The intention determines those acts that are intrinsically indifferent.
 - ⇒ A journey (indifferent moral object) is determined by the intention. It can be for business reasons (honourable or otherwise), for relaxation or for smuggling.
- The subject's goal determines the act in as much as the act ought to be directed, not by itself but through the subject, to one thing or another. In order to evaluate an action, we must above all keep in mind its essential morality, that which it has when considered in itself.
 - ⇒ The end is the first goal of the intention and indicates the objective that is sought in the action.
 - ⇒ Through this the will moves itself to act and aims at the desired good in the action that is undertaken.

⇒ It does not limit itself to determine each of the acts taken in isolation, rather it can also direct various actions towards the same objective: it can direct an entire life towards its final goal.

The circumstances

- The circumstances (from the Latin *circum stare*, to be around) are different factors or accidental aspects of the object or of the intention of the subject which affect the goodness of the action in some way.
- Human acts do not receive all their goodness from the moral object, rather it also comes from the circumstances which are like accidents that surround a moral action and can modify its object.
- If the end and the object are like the form and the matter respectively, of the moral act, the circumstances are like the accidents.

⇒ So, if the act is good in its object and its end, the circumstances can increase or decrease its goodness, and they can even come to transform a good act into an evil one.

⇒ In consequence, when judging a moral fact we need to take into account all the factors that accompany the act.

- The main circumstances that surround an act and that have moral influence, are the following:
 - a) **characteristics or qualities of the person who acts:** it makes sense that the morality of an action varies according to the person who does it. A notary's false witness does not have the same moral value as that of a private person; the bad action of a person in authority is more serious as he is giving bad example;
 - b) **quality and quantity of the object involved in the act:** the quantity that has been robbed seriously modifies the gravity of the theft, just as the goodness of a small alms and a magnanimous alms differs. The quality of the object may also differ: it is not the same to do harm to one's parents and to do harm to an unknown person;
 - c) **place where the act is carried out:** a given action that is carried out in a public place will be evaluated differently if it is carried out in a private or a sacred place. A calumny made when we are alone does not have the same value as one that is made through the means of communication;
 - d) **means employed:** we refer here to the means with which the act is carried out. We can distinguish, for example, between an armed robbery and theft that is carried out without violence;
 - e) **way of acting:** the way the act is carried out can involve greater or lesser goodness and malice. It is different to act with full awareness than to act in a

moment of strong passion. Neither is it the same to correct someone in a delicate way, or roughly.;

- f) **amount and quality of the time involved:** here we are referring to the amount of time in which the act is carried out, for example, the duration of the act; whether it is carried out in a time of war or in a time of peace, etc.
 - g) **reason for the act:** here we are not referring to the main aim of the subject but, rather, to secondary or added motives which are not the cause of the act, to the extent that the act would still be done even if these aims were not achieved. For example, a person may help another out of solidarity but, at the same time, expect some human reward;
 - h) **the consequences of the action:** these are other effects that may result from the act and that can affect its morality to the extent that they may be foreseen and avoided. Reasonably foreseeable consequences, with certainty or great likeliness, and which are avoidable, increase the goodness or the badness of the act, while the unforeseen and unavoidable effects caused by the act itself can be completely excluded from the free will of the subject.
- The object, the end and the circumstances are intimately connected in the action of the subject. For this reason, in the next section we will try to clarify the principles that determine the influence of these three elements on the moral activity.

Principles of moral behaviour

- The goodness or the badness of a human act is determined by the end that is sought, the moral object that is chosen, and the circumstances that surround it. This occurs according to the following principles:
 - a) **the moral object gives the act its own intrinsic and essential moral value:**
 - ⇒ if the act has a bad moral object, it will necessarily be evil in every time and place, independently of the person who does it and the intention that they may have.
 - ⇒ An action can only be morally speaking good if its object is ordainable to the last goal. The goodness of the object of the external act is essential for the goodness of the desire of the will.
 - ⇒ “For this reason a *sine qua non* condition for the goodness of an act it that the object of the external act be good or indifferent (...) The morality of a specific action, that includes its intentions and deeds, can never be considered independently of the object of the external act as this is the first element that the intention embraces”¹⁰.

¹⁰ GARCIA DE HARO, Ramón, *La vida cristiana*, Eunsa, Pamplona, 1992, p. 373.

b) the action that has a morally good object also needs an upright intention in order to be really good, that is, it requires a good end:

- ⇒ thanks to the morally good object, the action has its first goodness or uprightness, to which the intention of the will must adhere.
- ⇒ If the subject's goal is not good, the right intention is lacking.
- ⇒ An action is carried out that, in itself, is good, but is used as a means to obtain a bad end.
- ⇒ Hence, the person acts in a bad way because he strips the original goodness from the object due to his bad end.
- ⇒ From all this we can see that evil can never be done to obtain something good: the end does not justify the means.

Four consequences can be derived from this:

- actions that are indifferent in their object become good or bad depending on their end;
- an action that has a good object can become less good or better, or even bad according to its end. A good object, having a good end, gives rise to an action that has greater or lesser goodness depending on the quality of the end;
- an action that has a bad object, can become less bad or worse according to its end, but it can never become good;
- when the object of an act is bad any good consequences that may come from it does not change the moral value of the act.

c) the circumstances can increase or decrease the goodness or badness of an act; they can make a good act become bad, but they can never make a good act if there is a bad object:

- ⇒ this is the case whenever the circumstances modify the moral value of the object, that is, its relation with the moral norm.
- ⇒ It may also happen at other times that none of the seven circumstances influence the morality of the action, or that the presence of some of them increases or decreases the goodness or badness of the act.
- ⇒ For example, if a wealthy person gives alms, the goodness of his act will not be the same if he only gives two cents instead of two million dollars.

- Upon considering these relations we can see the moral character, good or bad, of each specific human act. For this reason, there are no indifferent acts in fact. In each act that is freely carried out the person tends necessarily towards a specific end, which is unavoidably present in the person who acts.
 - In summary, for an action to be good, the three elements that make it up need to be good: a good object, a good end, and good circumstances; for the act to be bad, it is enough that any of these elements be bad. If any of them is opposed to the moral law, the act is bad.
 - St Thomas Aquinas, and from this we can deduce that:
 - a) if an object is good in itself, the end and the circumstances can make the act bad or it can make it better;
 - b) if the object is indifferent in itself, the end and the circumstances can make the act good or bad;
 - c) if the object is bad, the circumstances and the end, although they may be good, can never make that moral act good, only more or less evil.
- ⇒ The principles or sources of morality are taken from among the elements of the free human act that determinate its orientation towards man's last end. An act will be complete, will be good, if it possesses everything that it ought to have in order to obtain perfection.

The act with double effect or the indirectly voluntary act

- These two terms refer to the act that has good and bad effects at the same time. And the possible licitude of carrying it out.
- ⇒ The act has, on the one hand, a good direct object and,
- ⇒ on the other, an indirect effect that is of no interest and that is not desired at all, even though it is inevitably linked to the act that we want to carry out.
- ⇒ The question is whether or not it is licit to do an act that has an indirect bad effect.
- ⇒ "For St. Thomas Aquinas, the indirect voluntary is always something that is wanted and for which one is responsible; it is wanted, not in itself, but for the sake of something else, but it is really wanted, with all its consequences: his example is that of the captain of a ship in danger of being ship-wrecked who orders that the merchandise be thrown overboard to save the boat and the passengers; he does not think that the bad effect (throwing the merchandise into the sea) is involuntary or not sought,

rather, that this precisely has been sought and done for the sake of a good which made it right to want that”²⁰.

- Before dealing with this topic we need to remember that if an act has a bad object the problem does not actually exist. If it is an intrinsically evil act, it cannot be carried out without falling into moral fault, independently of the negative indirect effects that it may have.
- So, the question ought to be reformulated: can an act that in itself is not bad, but that has a bad indirect effect be carried out without committing a moral fault? Is it licit to carry out a good action that will bring with it good and bad consequences? Under what circumstances would this type of act be licit?

⇒ In general, these types of actions, although they may be very frequent, ought to be avoided but, under certain conditions, which we will explain in the next section, they may be carried out without the action being qualified as morally evil.

Conditions for moral licitude

- The principle regarding the indirect voluntary act can be formulated by stating that it is licit to carry out an action that is good or indifferent in itself, that has a double effect, one good and one bad,

⇒ If the act is good or indifferent in itself

⇒ if the good effect is immediate,

⇒ the agent's end is honest,

⇒ and there is a proportionate reason for permitting the bad effect.

⇒ This statement includes the four requirements that, traditionally, have been enumerated as the conditions for moral licitude in this case.

- a) **that the action be good or indifferent in itself:** when there are good and bad effects, firstly we need to analyze the moral object of the action. One can never do something evil in order to obtain something good. An act that is immoral in itself is never justifiable, no matter how great the good expected from it may be.

⇒ Evil can only be tolerated as an indirect and inevitable effect that accompanies an act which in itself must be good or indifferent.

²⁰ GARCIA DE HARO, Ramón, *La vida cristiana*, Euns, Pamplona, 1992, p. 387.

b) that the good effect be immediate, that is, that the good effect not be obtained through the bad effect: The bad effect ought not to affect the moral object of the action, but rather, occur *per accidens*: like a risk that is taken by doing the good act with an upright intention and moved by a just cause.

⇒ The good effect ought to follow from the action, with at least the same immediacy as the bad effect, never through the bad effect; otherwise, the bad effect would be the means for attaining the good one and it is not licit to do evil in order to obtain something good;

c) that the intention of the agent be good: the end sought by the subject ought to be honest, that is, he ought to want only the good effect and truly reject the bad one.

⇒ This means that there is an obligation to employ all the possible means so that the bad effect be avoided.

⇒ If the bad effects are not directly wanted but simply tolerated as inevitable, the upright intention of the subject will move him to employ all the means within his reach to reduce these negative results.

⇒ Rectitude of intention means to want the good effects and only to tolerate the bad ones that cannot be avoided or reduced;

d) that there exist a proportionately grave cause or need to carry out the act: this is one more sign of the rectitude of the person who acts. A serious negative effect cannot be tolerated for a light reason.

⇒ For example, it would not be licit to kill a thief in order to defend goods of little value, while it would be licit to do so in the case of legitimate defense. The bad effect does not form part of the action and it is linked to it *per accidens*; no matter how many of the steps necessary to avoid it are taken, there is still a risk of the bad effect being produced.

⇒ Taking all this into account, we can conclude that the negative effects are only tolerable when there is a proportionate reason.

- It may be difficult to make this judgment in some situations. “One needs to judge in a impartial way, without letting one’s own interests bring one to rationalize the situation in such a way that one tries to justify a selfish position. To achieve this one must remember the ‘golden rule’ of putting oneself in the place of another and considering that the goods of the person are common to he who decides and to those who receive the effects of the decision”²⁷.

²⁷ MELE, Domenec, *Ética en la dirección de empresas*, Foli, Barcelona, 1997, p. 124.

⇒ It will often be necessary to ask the advice of other people as, to be involved in a difficult situation, can condition the objectivity with which the situation is judged.